

STATE OF NEW YORK

1649--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 10, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Tourism, Parks, Arts and Sports Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the parks, recreation and historic preservation law, in relation to the cleaning of playground equipment after pesticide exposure

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The parks, recreation and historic preservation law is amended by adding a new section 29.17 to read as follows:

§ 29.17 Cleaning of playground equipment after pesticide exposure. 1. As used in this section, the following terms have the following meanings:

(a) "Municipality" shall mean a city, county, town or village, or an improvement district within a city, county, town or village or any combination thereof.

(b) "Office" shall mean the state office of parks, recreation and historic preservation.

(c) "Park playground equipment" shall mean playground equipment which is located within a playground operated by any municipality or office.

(d) "Pesticide" shall have the same meaning as in subdivision thirty-five of section 33-0101 of the environmental conservation law.

2. The department of environmental conservation in consultation with the department of health shall establish the minimum distance between playground equipment and the spraying of a pesticide at which such equipment will not be exposed to such pesticides.

3. Following the spraying of any pesticide by or on behalf of any municipality or office, the municipality or office shall clean all park playground equipment located less than the minimum distance established by the department of environmental conservation and the department of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 health. The municipality or office shall make a reasonable effort to
2 clean the equipment immediately following pesticide application, but
3 shall be required to clean the equipment within twenty-four hours of the
4 application. The department of environmental conservation and the
5 department of health shall establish standards for cleaning playground
6 equipment to remove pesticide residue, which shall apply to all cleaning
7 conducted pursuant to this subdivision. Such standards shall include,
8 but not be limited to:

9 (a) The identification of safe and effective cleaning methods appro-
10 priate to the type of pesticide used;

11 (b) Required employer-provided personal protective equipment (PPE) for
12 workers performing the cleaning, including, but not limited to, gloves,
13 goggles, protective clothing, and respiratory protection where neces-
14 sary; and

15 (c) Protocols to minimize the duration and intensity of employee expo-
16 sure to pesticide residues, including staffing considerations and rest
17 breaks where appropriate.

18 4. For purposes of this section the use of an aerosol product with a
19 directed spray, in containers of eighteen fluid ounces or less, when
20 used to protect individuals from an imminent threat from stinging and
21 biting insects including venomous spiders, bees, wasps, and hornets,
22 shall be exempt. This section shall not exempt the use of any fogger
23 product or aerosol product that discharges to a wide area.

24 5. Nothing contained in this section shall be construed to restrict
25 the power of a city with a population of one million or more to adopt
26 and enforce local laws that comply with at least the minimum applicable
27 standards set forth in this section.

28 § 2. This act shall take effect on the one hundred eightieth day after
29 it shall have become a law. Effective immediately, the addition, amend-
30 ment and/or repeal of any rule or regulation necessary for the implemen-
31 tation of this act on its effective date are authorized to be made and
32 completed on or before such effective date.